DIVISION BENCH ITEM NO.3

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

MA NO.16/2023 IN CP (CAA) No.67/ALD/2019, IN CA (CAA) No.421/ALD/2018
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 23rd November, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**LANDCRAFT DEVELOPERS PRIVATE LIMITED WITH CHAMPION INFRA PROJECTS PRIVATE LIMITED**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Shahid Kazmi, Adv. *: For the Applicant/ Petitioner*

ORDER

MA NO.16/2023

Ld. Counsel representing the Applicant is present physically.

1. This application has been filed, thereby praying for condonation of delay of 955 days in filing of order dated 28.01.2021 in CA (CAA) No.421/ALD/2018, through e-Form INC-28 with MCA.

2. It is averred in the application that the aforesaid company application was filed before this Tribunal and in terms of an order dated 28.01.2021, the copy of which is attached at page 10, the scheme with respect to the transferor company, falling within the jurisdiction of this Tribunal, was sanctioned. It is also *interalia* averred in the application that another company petition was filed before the NCLT, Delhi Bench for seeking sanction of the scheme with respect to the transferee company as the registered office of the transferee company was at Delhi, and therefore the NCLT, Delhi Bench had the jurisdiction over the said company.

-Sd- ***-Sd-***

3. The scheme with respect to the transferee company has now been sanctioned in terms of an order dated 10.11.2023, which is placed from page no.18 to 34 and the operative part of the order is at para 18 page 32-34. The NCLT, Principal Bench in terms of the aforesaid order dated 10.11.2023 *vide* its para 20, has also observed as under :-

> *20. Further, the Petitioner Company shall within thirty days of the date of the receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Transferor companies shall be dissolved and the Registrar of Companies shall place all documents relating to the Transferor Companies on the file kept by him in relation to the Transferee Company and the files relating to all the Petitioner Company shall be consolidated accordingly.*

4. Keeping in view the fact that the composite scheme consisted of sanctioning of the scheme of transferor company with the transferee company having two different jurisdiction, and the order with respect to the transferee company having now been passed on 10.11.2023, we deem it appropriate to condone the delay in filing the order dated 28.01.2021 before the MCA along with copy of the scheme sanctioned now by the NCLT, Delhi.

5. Let the same be done within a period of 30 days from today.

6. Accordingly, MA No.16/2023 is allowed and stands disposed off.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

23rd November, 2023

Kavya Prakash Srivastava
(Stenographer)